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File No.: EXP202300756

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for the Protection of Data and based on the following

BACKGROUND

FIRST: Mr. A.A.A. (hereinafter, the claimant) filed a complaint with the Spanish Agency for the Protection of Data on 01/12/2022. The complaint is directed against the AYUNTAMIENTO DE LLAURÍ, with NIF P4615700D (hereinafter, the respondent). The reasons for the complaint are as follows: the claimant states that he participated in a selection process called by the respondent; this entity published the results of the first exercise on its website, with the DNI data of the participating individuals included in the published lists. Along with the complaint, he provides the link that allows access to the published data.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), on 02/02/2023, the complaint was forwarded to the respondent/ALIAS for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on 02/02/2023 as evidenced by the acknowledgment of receipt in the file.

The respondent did not respond to the forwarding of the complaint.

THIRD: On 01/03/2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claimant was admitted for processing.

FOURTH: On 05/07/2023, the Director of the Spanish Agency for the Protection of Data decided to initiate sanctioning proceedings against the respondent for the alleged violations of Articles 5.1.f) and 32.1 of the GDPR, classified in Articles 83.5.a) and 83.4.a) of the GDPR, in accordance with the provisions of Article 77 of the LOPDGDD.

FIFTH: After notification of the initiation agreement, the respondent submitted a written statement on 31/07/2023, summarizing: that the receipt of the initiation agreement has allowed the identification of the claimant's identity, which has enabled this municipality to ascertain the selection process referred to, which is from the year 2020; that the publication on the website of the results of the first exercise includes the DNIs of the participating individuals, in accordance with the provisions of the Seventh Additional Provision of the LOPDGDD; that in the publication referred to by the claimant, there are no names or surnames or any personal data that, in addition to the DNI, could identify the candidates for the position, strictly following the provisions of the aforementioned Additional Provision.

SIXTH: On 29/08/2023, a period for the practice of evidence was initiated, agreeing to the following:

- To consider the complaint filed by the claimant and its documentation, the documents obtained and generated by the Inspection Services that are part of the file, as reproduced for evidentiary purposes.
- To consider the allegations to the initiation agreement presented by the respondent and the documentation accompanying them as reproduced for evidentiary purposes.

SEVENTH: On 18/09/2023, a Proposal for Resolution was issued stating that the Director of the AEPD declares that the respondent has infringed the provisions of Articles 5.1.f) and 32.1 of the GDPR, classified in Articles 83.5.a) and 83.4.a) of the GDPR.

After the legally established period for allegations, the respondent did not submit any written statement.

EIGHTH: From the actions taken in this procedure, the following have been established:

PROVEN FACTS

FIRST. The claimant submitted a written statement to the AEPD on 01/12/2022 stating that he

participated in a selection process called by the respondent and that this entity published the results of the first exercise on its website, with the DNI data of the participating individuals included in the published lists.

SECOND. The claimant has provided a Google search with links that allow access to the announcements with the rectification of the results of the first exercise in the selection process for interim administrative assistant.

THIRD. The claimant has submitted a screenshot of the ANNOUNCEMENT RECTIFICATION RESULT FIRST EXERCISE AS A RESULT OF THE REVIEW OF THE TEST EXAM, where the full DNI number, name, and surnames of each of the participants are listed.

FOURTH. The claimant has submitted a screenshot of the ANNOUNCEMENT RECTIFICATION RESULT FIRST EXERCISE AS A RESULT OF THE REVIEW OF THE TEST EXAM, where the full DNI number of each of the participants is listed, this time without reference to their names and surnames.

This screenshot coincides with the one submitted by the respondent on 31/07/2023, along with the allegations to the initiation agreement.

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LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Article 58 of the GDPR, Powers, establishes in its paragraph 2:

"2. Each supervisory authority shall have all of the following corrective powers:

(...)

b) to issue a warning to any controller or processor when the processing operations have infringed the provisions of this Regulation;

(...)

d) to order the controller or processor to bring the processing operations into compliance with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame;

(...)"

III

The respondent, like any other public entity or body, is obliged to comply with Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data - GDPR - and with Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights - LOPDGDD - regarding the processing of personal data it carries out, understanding personal data as "any information relating to an identified or identifiable natural person." An identifiable natural person is considered to be one whose identity can be determined, directly or indirectly, in particular by means of an identifier, such as a name, an identification number, location data, an online identifier, or one or more specific elements of the physical, physiological, genetic, mental, economic, cultural, or social identity of that person.

Article 4, Definitions, of the GDPR establishes in its paragraphs 2, 3, 7, and 12 the following:

- 1) “personal data”: any information relating to an identified or identifiable natural person (“the data subject”); an identifiable natural person is considered to be any person whose identity can be determined, directly or indirectly, in particular by means of an identifier, such as a name, an identification number, location data, an online identifier, or one or more specific elements of the physical, physiological, genetic, mental, economic, cultural, or social identity of that person;
- 2) “processing”: any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure or destruction;
- 7) “controller” or “data controller”: the natural or legal person, public authority, agency, or other body that, alone or jointly with others, determines the purposes and means of the processing; where the law of the Union or of the Member States determines the purposes and means of processing, the controller or the specific criteria for its designation may be provided by the law of the Union or of the Member States;
- 12) “personal data breach”: a breach of security that leads to the accidental or unlawful destruction, loss, alteration, unauthorized disclosure of, or access to personal data transmitted, stored, or otherwise processed;

The respondent, as a local entity, provides a series of public services, for which it processes personal data of its employees and citizens; it carries out this activity in its capacity as data controller, as it is the one who determines the purposes and means of such activity, etc.

The reported facts materialize in the publication through the municipal website of the results of the first exercise of a selection process to fill the position of interim administrative assistant, with the published lists showing the full ID number of the participating individuals along with their names and surnames, which was later modified to show only the full ID number, which could violate the regulations on the protection of personal data.

In this case, there is a personal data breach under the circumstances indicated above, which affected the confidentiality of the personal data of the complainant.

Within the principles of processing provided for in Article 5 of the GDPR, the integrity and confidentiality of personal data is guaranteed in paragraph 1.f) of Article 5 of the GDPR.

On its part, the security of personal data is regulated in Article 32 of the GDPR, which governs the security of processing.

IV

Firstly, such processing could constitute a violation of Article 5, Principles relating to processing, of the GDPR, which establishes that:

“1. Personal data shall be:

(...)

f) processed in a manner that ensures appropriate security of the personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction or damage, by applying appropriate technical or organizational measures (“integrity and confidentiality”).

(...)”

On the other hand, the Seventh Additional Provision of the LOPDGDD establishes, with reference to

the identification of the interested parties in notifications through announcements and publications of administrative acts, the following in its section 1:

1. When the publication of an administrative act containing personal data of the affected party is necessary, the affected party shall be identified by their name and surname, adding four random numerical digits from the national identity document, foreign identity number, passport, or equivalent document. When the publication refers to a plurality of affected parties, these random digits must be alternated.

When it comes to notification by means of announcements, particularly in the cases referred to in Article 44 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the affected party shall be identified exclusively by the full number of their national identity document, foreign identity number, passport, or equivalent document. When the affected party does not have any of the documents mentioned in the two preceding paragraphs, the affected party shall be identified solely by their name and surname. In no case shall the name and surname be published together with the full number of the national identity document, foreign identity number, passport, or equivalent document.

(...)"

V

Article 83.5 a) of the GDPR considers that the infringement of "the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9" is punishable.

For its part, the LOPDGDD in its Article 71, Infringements, states that:

"Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements."

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The LOPDGDD, for the purposes of prescription, in its Article 72 indicates:

"Very serious infringements:

1. Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall prescribe after three years, which involve a substantial violation of the articles mentioned therein and, in particular, the following:

a) The processing of personal data violating the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.

(...)"

VI

The documentation in the file provides clear evidence that the respondent violated Article 5 of the GDPR, principles relating to processing, by allowing access to personal data as a result of the publication on the municipal website of the personal data of participants in a selection process for a temporary administrative assistant position, including those of the complainant, with the multiplying effects that the use of social networks can have for its visibility.

The duty of confidentiality must be understood as aimed at preventing unauthorized leaks of data not consented to by the data subjects.

The respondent has stated that "..., it is noted that the publication on the respondent's website of the results of the first exercise includes the ID numbers of the participating individuals.

This publication was made in accordance with the provisions of the Seventh Additional Provision of the LOPD, which regulates that, when it comes to notification by means of announcements, the affected party shall be identified exclusively by the full number of their national identity document, foreign identity number, passport, or equivalent document.

Indeed, in the publication referred to by the complainant, there are no names or surnames nor any personal data that, in addition to the ID number, could identify the candidates for the position, strictly following the provisions of the aforementioned Additional Provision."

However, as stated in the proven facts, there are two screenshots of the ANNOUNCEMENT RECTIFICATION RESULT FIRST EXERCISE AS A RESULT OF THE REVIEW OF THE TEST: a first one, where the full ID number, name, and surname of each participant are listed, and A second one, which shows the full ID number of each participant, this time without reference to their names and surnames.

It should be noted that the AEPD in the GUIDANCE FOR THE PROVISIONAL APPLICATION OF THE SEVENTH ADDITIONAL PROVISION OF THE LOPDGDD stated that:

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“(…)

The publication of the national identity document, foreign identity number, passport, or equivalent document may be carried out as follows:

- Given a DNI in the format 12345678X, the digits in the fourth, fifth, sixth, and seventh positions will be published. In the example: ***4567**.

(…)

Alphabetic characters, and those numeric characters not selected for publication, will be replaced by an asterisk for each position.

The provisional criterion proposed by the authorities signing this guidance also aims to prevent the adoption of different formulas in the application of the aforementioned provision from leading to the publication of numeric figures of identification documents in different positions in each case, allowing for the complete reconstruction of said documents.

Therefore, they recommend that the proposed formula be applied universally.

This recommendation is provisional until the governing bodies and the competent public administrations approve provisions for the application of the aforementioned Seventh Additional Provision.”

Therefore, the LOPDGDD includes in section 1 of its Seventh Additional Provision how interested parties should be identified in notifications through announcements and publications of administrative acts. Previously, this identification included the full name, surname, and complete number of the DNI or analogous document; however, to minimize the impact on citizens' privacy, the name, surname, and four random digits of the official identity document must be published.

It follows from the above that the respondent has violated Article 5.1.f) of the GDPR, an infringement classified in Article 83.5.a) of the GDPR.

VII

Secondly, the respondent is attributed with the possible infringement of Article 32 of the GDPR “Security of processing,” which states:

“1. Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the risks of varying probability and severity for the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which may include, among others:

- a) the pseudonymization and encryption of personal data;
- b) the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services;
- c) the ability to restore the availability and access to personal data quickly in the event of a physical or technical incident;
- d) a process for regularly verifying, assessing, and evaluating the effectiveness of the technical and organizational measures to ensure the security of processing.

2. In assessing the appropriateness of the level of security, particular consideration shall be given to the risks presented by the processing of data, in particular as a result of the accidental or unlawful

destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

3. Adherence to an approved code of conduct pursuant to Article 40 or an approved certification mechanism pursuant to Article 42 may serve as a factor to demonstrate compliance with the requirements set out in paragraph 1 of this article.

4. The controller and the processor shall take measures to ensure that any person acting under the authority of the controller or the processor and having access to personal data only processes such data on instructions from the controller, unless required to do so by Union or Member State law.”

VIII

The violation of Article 32 of the GDPR is classified in Article 83.4.a) of the aforementioned GDPR as follows:

“4. Violations of the following provisions shall be subject to administrative fines of up to 10,000,000 EUR or, in the case of an enterprise, an amount equivalent to up to 2% of the total annual global turnover of the preceding financial year, opting for the higher amount:

a) the obligations of the controller and the processor under Articles 8, 11, 25 to 39, 42, and 43.
(...)”

For its part, the LOPDGDD in its Article 71, Infringements, states that:

“Acts and conduct referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those contrary to this organic law, constitute infringements.”

And in its Article 73, for the purposes of prescription, qualifies as “Infringements considered serious”:

“Based on what is established in Article 83.4 of Regulation (EU) 2016/679, the following are considered serious and shall prescribe after two years: infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

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f) The failure to adopt those technical and organizational measures that are appropriate to ensure a level of security adequate to the risk of processing, as required by Article 32.1 of Regulation (EU) 2016/679.

(...)

IX

1. The GDPR defines personal data security breaches as “all breaches of security that lead to the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or unauthorized communication or access to such data.”

The documentation in the file provides indications that the respondent has violated Article 32.1 of the GDPR, as a security incident occurred and was facilitated, with a breach of technical and organizational measures.

It should be noted that the GDPR in the aforementioned provision does not establish a list of security measures applicable according to the data being processed, but rather states that the controller and the processor shall implement technical and organizational measures that are appropriate to the risk posed by the processing, taking into account the state of the art, the costs of implementation, the nature, scope, context, and purposes of the processing, and the risks of likelihood and severity for the rights and freedoms of the data subjects.

Furthermore, the security measures must be adequate and proportionate to the detected risk, indicating that the determination of technical and organizational measures must be made taking into account: pseudonymization and encryption, the ability to ensure confidentiality, integrity, availability, and resilience, the ability to restore availability and access to data after an incident, verification processes (which are not audits), evaluation, and assessment of the effectiveness of the measures. In any case, when assessing the adequacy of the level of security, particular attention shall be paid to the risks presented by the data processing, as a consequence of the accidental or unlawful

destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or unauthorized communication or access to such data that could cause physical, material, or immaterial damage.

2. In the present case, as stated in the facts, the AEPD forwarded the complaint filed to the respondent for analysis and to inform this Agency of the actions taken to comply with the requirements set forth in data protection regulations, without receiving a response to the request made.

In the allegations to the initiation agreement of 31/07/2023, it was stated that such publication was made in accordance with the provisions of the Seventh Additional Provision of the LOPD, which regulates that, when it comes to notification by means of announcements, the affected party shall be identified exclusively by the full number of the national identity document, foreign identity number, passport, or equivalent document.”

However, neither of the two screenshots regarding the publication through the municipal website of the results of the first exercise of a selection process to fill the position of interim administrative assistant conformed to the aforementioned Seventh Additional Provision, which proves that the adoption of the security measures implemented is not appropriate to ensure the confidentiality of personal data.

The responsibility of the respondent is determined by the absence of adequate security measures highlighted by the complainant, as they are responsible for making decisions aimed at implementing the appropriate technical and organizational measures to ensure a level of security adequate to the risk to safeguard the confidentiality of the data, restoring its availability and preventing access to it in the event of a physical or technical incident.

In accordance with the above, it is estimated that the respondent would be presumably responsible for the infringement of the GDPR: the breach of Article 32, an infringement classified in Article 83.4.a).

X

The LOPDGDD in its Article 77, Regime applicable to certain categories of controllers or processors, establishes the following:

“1. The regime established in this article shall apply to the processing for which they are responsible or processors:

(...)

c) The General Administration of the State, the Administrations of the autonomous communities, and the entities that make up the Local Administration.

(...)

2. When the controllers or processors listed in paragraph 1 commit any of the infringements referred to in Articles 72 to 74 of this organic law, the competent data protection authority shall issue a resolution declaring the infringement and establishing, where appropriate, the measures to be adopted to cease the conduct or correct the effects of the infringement that has been committed, except for that provided for in Article 58.2.i of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016.

The resolution shall be notified to the controller or processor, to the body to which they hierarchically depend, where appropriate, and to the affected parties who had the status of interested parties, where appropriate.

3. Without prejudice to the provisions of the previous paragraph, the data protection authority shall also propose the initiation of disciplinary proceedings when there are sufficient indications for it. In this case, the procedure and the

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The sanctions to be applied will be those established in the legislation on the disciplinary or sanctioning regime that is applicable.

Furthermore, when the infractions are attributable to authorities and executives, and it is proven that there are technical reports or recommendations for treatment that have not been duly addressed, the resolution imposing the sanction will include a reprimand naming the responsible position and will

order publication in the corresponding Official State or regional Gazette.

4. The resolutions related to the measures and actions referred to in the previous sections must be communicated to the data protection authority.

5. The actions taken and the resolutions issued under this article will be communicated to the Ombudsman or, where applicable, to the analogous institutions of the autonomous communities.

6. When the competent authority is the Spanish Agency for Data Protection, it will publish on its website, with due separation, the resolutions related to the entities mentioned in section 1 of this article, expressly indicating the identity of the person responsible or in charge of the processing who has committed the infringement.

When the competence corresponds to an autonomous data protection authority, the publicity of these resolutions will be subject to its specific regulations.

In the case examined, the present sanctioning procedure is based on the fact that the respondent, as stated in the facts, has violated the regulations on the protection of personal data regarding both the principle of confidentiality of the data and the technical and organizational measures.

This conduct constitutes an infringement by the respondent of the provisions of Articles 5.1.f) and 32.1 of the GDPR.

It should be noted that the GDPR, without prejudice to what is established in its Article 83, contemplates in its Article 77 the possibility of declaring the infringement and establishing the measures that are appropriate to correct the processing of personal data that do not comply with its provisions when the controllers or processors listed in section 1 commit any of the infringements referred to in Articles 72 to 74 of this organic law.

Additionally, Article 58 of the GDPR in its section 2 d) states that each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame...”

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Having confirmed the infringements, it is appropriate to impose on the responsible party the adoption of adequate measures to adjust its actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may “d) order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame.”

In this case, the respondent is required to, within two months from the notification of this resolution:

- Prove the adoption of adequate measures to prevent future incidents similar to those that led to the opening of this sanctioning procedure, avoiding incidents such as the one indicated by allowing access to the personal data of the complainant as a result of the publication on the website of their personal data appearing alongside the name and surname, the full ID number of both the complainant and the other participants in the selection process.

It is warned that failure to comply with the possible order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which may lead to the opening of an additional administrative sanctioning procedure.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established,

The Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE that the AYUNTAMIENTO DE LLAURÍ, with NIF P4615700D, has infringed the provisions of Articles 5.1.f) of the GDPR and 32.1 of the GDPR, infringements classified in Articles 83.5.a) and 83.4.a) of the GDPR.

SECOND: TO ORDER the AYUNTAMIENTO DE LLAURÍ, that pursuant to Article 58.2.d) of the GDPR, within two months from the notification of this Resolution, it must prove that it has proceeded to comply with the adoption of measures so that the processing operations comply with the provisions of this Regulation and that incidents like the one that led to this procedure regarding the infringement of the regulations on the protection of personal data do not occur again.

THIRD: TO NOTIFY this resolution to the AYUNTAMIENTO DE LLAURÍ.

FOURTH: TO COMMUNICATE this resolution to the Ombudsman, in accordance with the provisions of Article 77.5 of the LOPDGDD.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative process may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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